

AMENDMENT TO LEASE AGREEMENT

THIS FIRST AMENDMENT TO LEASE AGREEMENT ("First Amendment") is made and entered into as of September 7, 2022, by and between **FENDER PROPERTIES LP** ("Landlord") and **TD INDUSTRIES** ("Tenant").

RECITALS

The Lease for the premises located at 1501 W Francis, Midland, TX 79701, dated October 1, 2019 through September 30, 2022.

The Landlord and Tenant wish to extend the term of the Original Lease for an additional period and provide Tenant renewal, subject to the terms and conditions set forth in the Amendment; and whereas, the Original Lease and this Amendment shall hereinafter be referred to collectively as the "Lease".

1. Term. The Term of the Lease is hereby extended for the period of five (5) years, commencing on October 1, 2022 and ending on September 30, 2027. All of the terms and conditions of the Original Lease shall continue to apply during this Extended Term except as set forth in this Amendment.
2. Rent. The Base Rent for the Extended Term shall be \$6,800.00 per month.
3. Tenant's Option to Extend. Tenant may, in Tenant's sole discretion, extend the Term for an additional five (5) year option of renewal at prevailing market rate as of the last year of the primary term including any and all concessions with a written notice of six (6) months prior to expiration to exercise.
4. Broker. Landlord recognizes Stream ("Broker") as Tenant's representative in connection with this Amendment. Landlord shall be responsible for the payment of the full market commission equal to 4.5% of the net rental obligation in connection with this Amendment pursuant to a separate agreement between Landlord and Broker.

IN WITNESS WHEREOF, the parties have caused this Amendment to be executed by their duly authorized representatives as of the day and year first above written.

LANDLORD:

FENDER PROPERTIES, LP

By: Byron Fender
Name: Byron Fender
Title: Manager

TENANT:

TD INDUSTRIES, INC.

By: DocuSigned by: Jeff Sherman 9/8/2022
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Name: Jeff Sherman
Title: Vice President